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Nº 25

COLLECTION

SELLERS

The Location Certificate

When, why and how much.



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BEFORE YOU BEGIN

Important notice

This guide is provided for informational and educational purposes only. It presents general information about real estate in Quebec and does not constitute personalized real estate, legal, tax or financial advice. Every real estate situation is different, and you should consult the appropriate professionals before making a decision about a transaction.

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COLLECTION SELLERS · GUIDE NO. 25

The location certificate

When, why and how much — the document that can block a sale

The certificate of location is one of the most important - and most misunderstood - documents in a real estate transaction in Quebec. An expired or non-compliant certificate can delay, complicate or derail a sale.

This guide explains what this document is, when it must be renewed, what irregularities it may reveal, and how to anticipate it on the seller's side.

Informative content: special cases are settled with the notary and the land surveyor. Each chapter ends with a lined “My Notes” page.

The certificate of location is one of the most misunderstood documents - and one most capable of delaying a sale. This guide explains its role, when it needs to be renewed, the irregularities it reveals, and how to anticipate costs and deadlines.

The key message: we take care of it early, never the day before signing.

CHAPTER

What is a certificate of location?

> *Understand the role of this survey document.*

The certificate of location is a document prepared by a land surveyor which describes the current state of the property: boundaries of the land, location of buildings, easements, possible encroachments, and compliance with regulations and titles.

It includes a plan and a report. It allows the buyer, the lender and the notary to know exactly what is being sold and whether everything is compliant.

The certificate of location is a survey document which describes the state and location of the property (boundaries, buildings, easements, encroachments). The lender and the notary require it: it is a key document which must reflect the current reality at the time of the sale.

> EMILIE'S ADVICE
>
> *See the certificate of location as the "identity card" of the property. It is he who confirms that what you are selling corresponds to the titles and regulations.*

CHAPTER

When is a new certificate required?

> *Find out if yours is still valid.*

A certificate may become insufficient if it is too old or if it no longer reflects the current state of the premises. The notary and the lender require a certificate that corresponds to the present reality.

- Too old: the standards and the state of the premises may have changed.
- Modifications since (extension, shed, swimming pool, fence, entrance): the certificate does not show them.
- Regulatory or limit change: may make it non-compliant.

If in doubt, order a new certificate from a land surveyor. This takes time: it's better to start early.

A certificate becomes insufficient if it is too old or if it no longer corresponds to the condition of the premises (extension, shed, swimming pool, fence, new easement). If in doubt, have it checked early: producing a new certificate takes time that should not be discovered at the last minute.

> EMILIE'S ADVICE
>
> *If you have added anything since your certificate (shed, swimming pool, extension), assume that it needs to be updated. Think ahead: a surveyor does not produce a certificate overnight.*

CHAPTER

The irregularities it can reveal

> *Anticipate problems to be resolved before the sale.*

- Encroachment: a building (yours or a neighbor's) that exceeds the limit.
- Servitude: a right of a third party on your land (passage, public utility).
- Non-compliance with margins or municipal regulations.
- Gap between reality and headlines.

Some irregularities are minor; others require corrections, regularization or negotiation. Discovering them early prevents them from blocking the sale at the last minute.

The certificate may reveal irregularities to be resolved: encroachment (a building that exceeds a limit), non-compliance with regulations, forgotten easement. It is better to discover them - and deal with them - before the sale than to see them block the transaction at the notary.

> EMILIE'S ADVICE
>
> *Have your certificate read by the notary BEFORE putting it on sale. Resolving an irregularity in advance is much simpler than discovering it under pressure, with an offer in hand.*

CHAPTER

Costs, deadlines and good anticipation

> *Plan this often forgotten position.*

A new certificate represents a cost (surveyor's fees, variable depending on the property) and above all a production time. In a sale, this deadline can be critical if you start it late.

- Check your certificate as soon as you plan to sell.
- Order a new one early if necessary.
- Integrate this cost and this deadline into your sales schedule.

A new certificate represents a cost (surveyor's fees) and above all a delay. This is an item that is often forgotten: anticipate it from the decision to sell, and negotiate in the promise to purchase that pays for it, to avoid last minute tensions.

> EMILIE'S ADVICE
>
> *Treat the certificate of location as the very first check box in your sale. This is the document which, if forgotten, most often delays a signature at the notary.*

CHAPTER

When the certificate is no longer enough

> *React to an inadequate certificate.*

A certificate of location can be **expired** or no longer reflect reality (after work, an extension, a new fence). Your options:

- Produce a **new certificate** by a land surveyor.
- Consider a **title insurance**, which can sometimes fill the gap depending on the case.
- Negotiate **who pays** the new certificate in the promise to purchase.

The lender and the notary generally require a certificate that reflects the current state: it is better to resolve the matter early.

If the certificate is expired or inadequate, there are several options: have a new one produced, or sometimes resort to title insurance depending on the case. Discuss the issue as soon as you promise to purchase, never the day before signing - that's where things most often get stuck.

> EMILIE'S ADVICE
>
> *Discuss the issue of the certificate as soon as you promise to purchase, not the day before signing. Getting a new certificate produced takes time, and it is often negotiable: who pays for it decides at the start.*

IN PRACTICE

Action plan

> *Your next steps, concretely.*

This week

1. Find my certificate of location and check its date.
2. List additions made since then (shed, swimming pool, extension).

Within 30 days

1. Have the certificate read by the notary.
2. Order a new certificate if necessary, early.

Then

1. Correct any irregularity before putting it on sale.

To anticipate

1. Check as soon as you decide to sell whether my certificate is still valid.
2. Address any irregularities in advance and agree who pays for a new certificate.

REFERENCES

Resources & glossary

- Certificate of location: survey document describing the state of the property.
- Land surveyor: professional who produces the certificate.
- Encroachment: building which exceeds a land boundary.
- Servitude: right of a third party on your property.
- Non-compliance: deviation from regulations or titles.

- Certificate of location: survey document describing the state and location of the property.
- Land surveyor: professional who produces the certificate.
- Encroachment: construction exceeding a property line.
- Servitude: right encumbering land for the benefit of another.
- Title Insurance: Protection covering certain title or compliance issues.

GO FURTHER

Quiz - test yourself

1. The certificate of location is prepared by:

A) The notary

B) A land surveyor

C) The inspector

D) The broker

2. It describes in particular:

A) The color of the walls

B) Boundaries, buildings, easements and compliance

C) The rent

D) School tax

3. A certificate may become insufficient if it is:

A) Recent

B) Too old or no longer reflecting the place

C) Signed

D) Colorful

4. An addition such as a swimming pool or a shed:

A) Has no effect

B) May require a new certificate

C) Is illegal

D) Lower taxes

5. An encroachment is:

A) A tax

B) A building that exceeds the land line

C) Insurance

D) A piece of furniture

6. An easement is:

A) A tax

B) A third party's right to your land

C) One piece

D) A permit

7. You must have the certificate read by the notary:

A) After the sale

B) Before being put on sale

C) Never

D) When moving

8. The certificate is often the document which:

A) Speeds up everything

B) Forgotten, delays a signature the most

C) Is unimportant

D) Replaces inspection

Answers

1. B - It is a survey document (chap. 1).

2. B - It is the “identity card” of the property (chap. 1).

3. B - It must correspond to present reality (chap. 2).

4. B - The certificate does not show this (chap. 2).

5. B - A possible irregularity (chap. 3).

6. B - For example a right of way (chapter 3).

7. B - Adjusting upstream avoids blockages (chap. 3).

8. B - To be treated as a priority (chap. 4).

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You now have the right keys in hand.

Every real estate journey is different.

If you would like to go further,
I would be happy to discuss
your project with you.



Make informed decisions.
Choose with confidence.
Live without regrets.
See you soon,
Emilie ☺

Emilie Cauvier

RESIDENTIAL & COMMERCIAL
REAL ESTATE BROKER

(514) 774-9818

emilie@equipecauvier.com

guidesimmoquebec.com